

SENATE No. 792

The Commonwealth of Massachusetts

PRESENTED BY:

Mark C. Montigny

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to increasing consumer access to licensed rehabilitation counselors.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Mark C. Montigny</i>	<i>Second Bristol and Plymouth</i>	
<i>Michael O. Moore</i>	<i>Second Worcester</i>	<i>1/27/2025</i>

SENATE No. 792

By Mr. Montigny, a petition (accompanied by bill, Senate, No. 792) of Mark C. Montigny and Michael O. Moore for legislation relative to increasing consumer access to licensed rehabilitation counselors. Financial Services.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 682 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to increasing consumer access to licensed rehabilitation counselors.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 22 of chapter 32A of the General Laws, as appearing in the 2022
2 Official Edition, is hereby amended by striking out the last paragraph and inserting in place
3 thereof the following paragraph:-

4 For the purposes of this section, "licensed mental health professional" shall mean a
5 licensed physician who specializes in the practice of psychiatry, a licensed psychologist, a
6 licensed independent clinical social worker, a licensed mental health counselor, a licensed nurse
7 mental health clinical specialist, a licensed marriage and family therapist or a licensed
8 rehabilitation counselor within the lawful scope of practice for such therapist.

SECTION 2. Section 47B of chapter 175 of the General Laws, as so appearing, is hereby amended by striking out the next to last paragraph and inserting in place thereof the following paragraph:-

For the purposes of this section, "licensed mental health professional" shall mean a licensed physician who specializes in the practice of psychiatry, a licensed psychologist, a licensed independent clinical social worker, a licensed mental health counselor, a licensed nurse mental health clinical specialist, a licensed marriage and family therapist, or a licensed rehabilitation counselor within the lawful scope of practice for such therapist.

SECTION 3. Section 8A of chapter 176A of the General Laws, as so appearing, is hereby amended by striking out the next to last paragraph and inserting in place thereof the following paragraph:-

For the purposes of this section, "licensed mental health professional" shall mean a licensed physician who specializes in the practice of psychiatry, a licensed psychologist, a licensed independent clinical social worker, a licensed mental health counselor, a licensed nurse mental health clinical specialist, a licensed marriage and family therapist, or a licensed rehabilitation counselor within the lawful scope of practice for such therapist.

SECTION 4. Section 4A of 176B of the General Laws, as so appearing, is hereby amended by striking out the next to last paragraph and inserting in place thereof the following paragraph:-

For the purposes of this section, "licensed mental health professional" shall mean a licensed physician who specializes in the practice of psychiatry, a licensed psychologist, a licensed independent clinical social worker, a licensed mental health counselor, a licensed nurse

31 mental health clinical specialist, a licensed marriage and family therapist, or a licensed
32 rehabilitation counselor within the lawful scope of practice for such therapist.

33 SECTION 5. Section 4M of 176G of the General Laws, as so appearing, is hereby
34 amended by striking out the next to last paragraph and inserting in place thereof the following
35 paragraph:-

36 For the purposes of this section, "licensed mental health professional" shall mean a
37 licensed physician who specializes in the practice of psychiatry, a licensed psychologist, a
38 licensed independent clinical social worker, a licensed mental health counselor, a licensed nurse
39 mental health clinical specialist, a licensed marriage and family therapist, or a licensed
40 rehabilitation counselor within the lawful scope of practice for such therapist.